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CASE #	CASE NAME	HEARING NAME
CVPS2407656	MENDOZA LUCERO VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY VICTOR MANUEL MENDOZA LUCERO

Tentative Ruling: Granted in part.

Attorney fees granted in reduced, but reasonable amount of \$7,777.50. Costs are denied. Attorney fees from Defendant are due to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. On November 27, 2024, Plaintiff Victor Mendoza Lucero ("Plaintiff") filed a Complaint against Defendant General Motors, LLC ("Defendant") for Violation of Song-Beverly Act. In the Complaint, Plaintiff alleges that on January 27, 2023, he purchased a vehicle manufactured by Defendant that had written and implied warranties. (Complaint at ¶¶ 6-7.) The vehicle suffered from defects and Defendant failed to repair the defects after a reasonable number of attempts. (Complaint at ¶¶ 9, 16-18.)

On February 21, 2025, Defendant filed an Answer to the Complaint.

On August 19, 2025, Defendant served a C.C.P. § 998 Offer to Compromise ("998 Offer") on Plaintiff, offering to pay Plaintiff \$70,000, plus reasonable costs and attorney's fees to be determined, in exchange for the return of the Vehicle. Plaintiff accepted the 998 Offer on September 9, 2025.

Plaintiff seeks attorney's fees and costs totaling \$12,544.03, which includes \$8,825 in incurred attorney's fees, \$3,000 in anticipated fees for the reply and attendance at the hearing on this motion, and \$719.03 in costs. He argues that, as the prevailing party, he is entitled to recover all of the fees and costs reasonably incurred in connection with this lawsuit, and the hourly rates and number of hours billed for work performed are reasonable.

In opposition, Defendant argues that the fees should be reduced because the hours billed on this motion and anticipated for the reply and hearing are unreasonable; 4.9 hours spent by staff on vehicle surrender and settlement disbursement was unreasonable; 5.3 hours on settlement related tasks was unreasonable; and the time spent on administrative/clerical tasks is not recoverable. It also argues that Plaintiff's request for costs should be denied because Plaintiff failed to file a Memorandum of Costs or provide support for the claimed costs.

In reply, Plaintiff argues that Defendant does not dispute that he is the prevailing party entitled to fees or that counsel's hourly rate is reasonable; the work characterized by Defendant as clerical was proper paralegal work; the settlement related time and time spent on the motion and reply was reasonable and necessary; and the costs are itemized in counsel's declaration in support of the motion, and invoices are now provided.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Ibid.*) There is no dispute that Plaintiff is the prevailing party in this case.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Under the Song Beverly Act, "[a] trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.)

The prevailing buyer in a Song Beverly Act action has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

Here, there is no dispute that Plaintiff is the prevailing party for purposes of attorney fees.

Plaintiff's counsel's billing records indicate a lodestar figure of \$8,825, based on 25 hours billed. The hourly rate for Plaintiff's counsel, Hilda Zamora, is \$600/hour. Defendant does not object to this hourly rate. However, it is high for Riverside County, especially for a simple lemon law case (See, *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) The court will reduce her hourly rate to \$550.00 an hour, which is at the high end of that typically allowed for experienced partners working on lemon law matters before the instant court. ($6.9 \times 550 = \$3,795$)

Defendant properly objects to time billed at \$200/hour by "staff" in Plaintiff's counsel's office. This results in a reduction of **\$120** ($0.6 \times \200). Defendant also properly objects to time billed by Plaintiff's counsel's office for clerical and/or administrative tasks, including mailing documents, filing documents with the Court, forwarding documents to opposing counsel, internal communications, preparing and reviewing memos to the file, communicating with the Court, and calendaring. The amount billed on clerical/administrative tasks totals 5.2 hours: 4.5 hours by paralegal Maria Villalobos at \$275/hour, and 0.7 hours by Ms. Zamora at \$550/hour. This results in a further reduction of **\$1,657.50**, for a total reduced lodestar of **\$9,702.50** (\$11,825 - \$345 - \$1,777.50.)

Defendant also objects to the amount billed for preparing the present motion and the estimated amount for preparing the reply and attending the hearing on the motion. These objections also have merit because while Plaintiff's counsel has significant lemon law experience, based on the billing records provided, their use of canned motions did not result in the significant savings it should have. Counsel billed 3.0 hours for preparing the motion. This will be reduced to 2.0 hours, resulting in a reduction of **\$550.00** (1.0 x \$550). Counsel anticipates spending 5.0 hours preparing the reply and attending the hearing on the motion. This will be reduced to 2.5 hours, resulting in a reduction of **\$1,375** (2.5 x \$550). Thus, an additional reduction from the lodestar of \$1,925.00 in anticipated fees not granted.

This results in a total reduced fee award of **\$7,777.50**

Costs

Under C.C.P. §1032(b), unless otherwise provided, "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Again, there is no dispute that Plaintiff is the prevailing party. C.C.P. § 1033.5(a) contains a list of items specifically allowed as recoverable costs, and § 1033.5(b) contains a list of items that "are not allowable as costs, except when expressly authorized by law." An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).)

"A verified memorandum of costs is prima facie evidence of their propriety," and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) If the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.* at 774.)

Here, Plaintiff failed to file a Memo of Costs, and Defendant objects to Plaintiff's request for costs on the ground that no support was provided. While counsel states in her declaration that various costs were incurred, she provides no documents or other evidence to show the costs were incurred. (See, Decl. of Hilda Zamora at ¶ 12.) Plaintiff then submits some invoices along with her reply. However, "the general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316; *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453 ["Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument."].) "[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ..." and if permitted, the other party should be given the opportunity to respond. (*Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, fn. 8; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252; *San Diego Watercrafts, supra*, 102 Cal.App.4th at 316.)

Plaintiff provides no explanation for why this evidence could not have been introduced with its motion. Thus, there is no evidence this is an "exceptional case" in which the new evidence should be considered. Accordingly, the Court will not consider the invoices provided for the first time with Plaintiff's reply.